

MUTUAL NON-DISCLOSURE AGREEMENT

(Bilateral Confidentiality — Strategic Partnership Evaluation)

PARTY A (Disclosing / Receiving)	PARTY B (Disclosing / Receiving)
Vantara Healthcare Systems Corp. 3300 Biomedical Blvd, Suite 400 Boston, MA 02110 EIN: 04-7123894 Legal: contracts@vantarahc.example	Luminary Diagnostics Ltd. 88 Pharma Park, Unit 7 San Diego, CA 92121 EIN: 33-9087451 Legal: legal@luminarydiag.example

Effective Date:	March 1, 2025	Agreement No.:	NDA-2025-0112
Duration:	3 Years from Effective Date	Governing Law:	Commonwealth of Massachusetts
Purpose:	Evaluation of potential joint venture in AI-driven diagnostics		

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all non-public information disclosed by one party ("Disclosing Party") to the other party ("Receiving Party"), whether disclosed orally, in writing, electronically, or by any other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature and context of disclosure.

1.2 Confidential Information includes, without limitation:

- Trade secrets, proprietary algorithms, and source code
- Clinical trial data, patient outcome databases, and research methodologies
- Financial projections, business plans, and merger or acquisition strategies
- Personnel data, compensation structures, and organizational charts
- Customer lists, vendor contracts, and pricing information
- Regulatory submissions (FDA 510(k), PMA applications) and audit reports

2. OBLIGATIONS OF RECEIVING PARTY

2.1 Each Receiving Party agrees to: (a) hold all Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care; (b) not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party; and (c) use Confidential Information solely for the Purpose set forth in this Agreement.

2.2 **Need-to-Know Basis.** Each Receiving Party shall limit access to Confidential Information to those of its employees, officers, and advisors who (i) have a legitimate need to know such information for the Purpose and (ii) are bound by written confidentiality obligations at least as protective as those set forth herein.

2.3 **Prompt Notification.** Each Receiving Party shall promptly notify the Disclosing Party upon discovery of any unauthorized use, access, or disclosure of Confidential Information.

3. EXCEPTIONS TO CONFIDENTIALITY

Confidentiality obligations shall NOT apply to information that the Receiving Party can demonstrate:

- (1) Was already known to the Receiving Party at the time of disclosure, as evidenced by written records predating disclosure
- (2) Is or becomes generally available to the public through no breach by the Receiving Party
- (3) Is rightfully received from a third party without restriction on disclosure
- (4) Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information
- (5) Is required to be disclosed by law, regulation, or court order, provided the Receiving Party provides prompt written notice and cooperates in seeking protective measures

4. RETURN OR DESTRUCTION OF INFORMATION

Upon written request by the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall promptly return or certifiably destroy all Confidential Information (including all copies, notes, and summaries thereof) and shall certify in writing that such return or destruction has been completed within ten (10) business days.

5. TERM & SURVIVAL

5.1 This Agreement is effective for three (3) years from the Effective Date. Confidentiality obligations with respect to information designated as a trade secret shall survive indefinitely.

5.2 Either party may terminate this Agreement upon 30 days' written notice; however, all confidentiality obligations accrued prior to termination shall remain in full force.

6. REMEDIES

The parties acknowledge that breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, each party shall be entitled to seek equitable relief, including injunction and specific performance, without posting bond or other security, in addition to all other remedies available at law or in equity.

7. NO LICENSE OR PARTNERSHIP

Nothing in this Agreement grants either party any license or right in or to any patent, copyright, trademark, trade secret, or other intellectual property. This Agreement does not create a partnership, joint venture, agency, or employment relationship between the parties.

8. GENERAL PROVISIONS

8.1 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior discussions and agreements.

8.2 Amendment. No modification of this Agreement shall be valid unless made in writing and signed by authorized representatives of both parties.

8.3 Waiver. Failure to enforce any provision shall not constitute a waiver of future enforcement.

8.4 Severability. If any provision is held invalid, the remaining provisions shall continue in full force.

8.5 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original.

SIGNATURES

Vantara Healthcare Systems Corp.

Luminary Diagnostics Ltd.

By: _____ Name: Dr. Elena Vasquez
Title: Chief Legal Officer

Signature

By: _____ Name: James T. Okonkwo
Title: President & CEO

Signature

Date

Date